

**Send Invoice To:**

SUB BERRY GLOBAL INC
2320 BOWLING GREEN RD
FRANKLIN KY 42134
Phone #: (270) 586-2443
Fax #: (270) 586-2434
FRANAccountsPayable@berryglobal.com

PURCHASE ORDER

Page 1 of 1

PO Number	16955002	- 000 OP
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VENDOR CODE	BRANCH / PLANT
124826	FRAN
COMPANY	00068

VENDOR:

LOPAREX LLC
4194 PAYSHERE CIRCLE
CHICAGO IL 60674

SHIP TO:

BPC00000068

COVALENCE SPECIALTY ADHESIVES LLC
sub BERRY GLOBAL, INC
2320 BOWLING GREEN RD
FRANKLIN KY 42134

PO DATE	CARRIER	FREIGHT	PAYMENT TERMS		TAX	
10/10/25		.	3% 10, NET 30			
BUYER		ORDER PLACED BY	ORDER TAKEN BY	REQ. DATE	PROMISED DELIVERY	
PENDLETON, JENNIFER		JJPENDLE	E 10/10	11/03/25	11/03/25	
QUANTITY	ITEM NUMBER	DESCRIPTION	ORIG ORDER	REQ DATE	UNIT COST	EXTENDED COST

* Please confirm P.O. via email to: *
* jenniferpendleton@vybond.com *

NOTIFICATION: FRAN requires delivery appointments for all inbound shipments.
Schedule via email through FRANlogistics@vybond.com or call 270-5862276

EMAIL FRANlogistics@vybond.com FOR SHIPMENT RELATED INQUIRIES.
Copy of COA AND DOM (date of mfg) MUST be emailed to FRANCOA@vybond.com

250000	LY	1078336	REL,PAP,D43# NT KFT 62"	6955000	OB	11/03/25	.3400	LY	85,000.00
		Line: 1000	44982 H/O 6300B6/000 R 2004489						

3% 10, NET 30

Tax Rt

All purchases are conditioned upon Vendor's agreement to be bound solely by Berry Global's standard purchase terms and conditions available online at <https://www.berryglobal.com/en/legal/supplier-resources>. A Certificate of Analysis for each item listed on this purchase order must be sent to the ship to location listed herein at the time of shipment.

TOTAL TAX:		
ORDER TOTAL:	USD	85,000.00

AUTHORIZED SIGNATURE

These Purchase Order Terms and Conditions ("Terms and Conditions") are incorporated into each purchase order ("P.O.") issued by Berry Global, Inc. and/or any of its subsidiaries ("Berry"). The P.O. and the Terms and Conditions are collectively referred to as the "Agreement". Berry agrees to purchase, and the Supplier identified in the P.O. ("Supplier") agrees to sell, solely pursuant to these Terms and Conditions, the goods and/or services described in the P.O. ("Goods"). Supplier shall be deemed to have accepted the P.O. on the earlier of (i) the day it begins performance to fulfill the P.O. and (ii) five (5) days after receipt of the P.O. provided it has not issued to Berry a written rejection of the P.O. within five (5) days of time period. Upon Supplier's acceptance and unless Supplier and Berry agree to inconsistent terms within a separate, mutually signed document, (i) the P.O. shall be automatically deemed to incorporate these "Terms and Conditions", regardless of whether the P.O. references them; (ii) Berry objects to and rejects all different and additional terms and conditions of Supplier, even if Supplier makes reference to them in quotations, order confirmations, or other documents containing preprinted terms or conditions, correspondence (e.g. e-mail) or in any other way (the "Supplier's Forms"), and (iii) no term or condition of any Supplier Forms will become part of the contract between the parties or bind Berry. Notwithstanding the foregoing, to the extent that the terms expressly stated in the P.O. conflict with the Terms and Conditions, the terms stated in the P.O. will control. Supplier's acceptance of these Terms and Conditions is expressly conditioned on Supplier's acceptance of the Terms and Conditions.

1. **Supply of Goods.** Supplier shall supply the Goods to Berry in accordance with the Agreement with the skill, care, prudence, and foresight of a diligent supplier of such Goods. Any terms, services, or responsibilities not specifically defined in the Agreement and which are reasonably necessary for the proper supply of the Goods shall be included and delivered for the price stated in the P.O. Supplier shall comply with all written policies (whether presented electronically or otherwise), recommendations, requirements, and reasonable instructions of Berry provided from time to time, including without limitation all security and safety regulations as well as any other requirements with respect to the Goods that may be required by Berry's sites, premises or other facilities to which Supplier or its agents has access. Supplier and its Goods shall at all times comply with Berry's quality assurance requirements contained within Berry's Supplier Code of Conduct (available online at <<https://www.berryglobal.com/lead>>) as well as any other requirements with respect to the Goods that may be required by Berry's business.

2. **Delivery Instructions.** Whenever requested to do so, Supplier will identify the Goods in the manner specified by the Agreement (in whole or in part) for any reason. Supplier shall provide such reasonable transfer assistance to a new supplier in respect of the Goods as Berry may require to minimize any disruption of risk and ensure continuity of Berry's business.

3. **Delivery Instructions.** Whenever requested to do so, Supplier will identify the Goods in the manner specified by the Agreement. Supplier shall properly and carefully package the Goods in strict accordance with Berry's instructions. If any, and in all cases, in a manner appropriate for the Goods so as to minimize risk of damage in transit. Packing slips must accompany the delivery. Invoices, packing slips and containers must bear the P.O. number, stock number, vendor lot number, and description of Goods in a clearly visible format. Invoices and packing slips must be marked "complete" when final delivery is involved. Berry shall have the right at any time to specify the carrier or method of transportation. Berry shall also have the right to require special, express or air shipments if Supplier fails or will fail to meet the delivery requirements of the P.O. and must be transported to ensure arrival at the "ship/delivery to" point free of damage and deterioration. Notwithstanding anything in the foregoing, to the contrary, title and risk of loss of the Goods shall pass to Berry only upon receipt of the Goods by Berry, and any rightful rejection or revocation of acceptance of any Goods by Berry shall immediately shift the risk of loss of such Goods, wherever located, clean, free of insects, rodents and foreign material and adequate for the purpose intended and if such packaging is to be returned, the shipping and transportation costs shall be paid by Supplier. Wood packing used for international shipments must meet current ISPM requirements as established by the International Plant Protection Convention. Supplier will comply in all respects with importation requirements and provide all necessary documents and information required to facilitate importation of Goods. Unless expressly stated otherwise within the P.O., Supplier will be responsible to pay (i) all applicable tariffs, duties and taxes which may include federal, state or local taxes, value added, use and extended producer responsibility taxes and fees), import fees and other assessments which may be imposed on the Goods or otherwise related to the export and import of Goods as well as (ii) freight costs to Berry's delivery address specified in the P.O. Any further impositions that Berry agrees to pay under a P.O. shall be separately identified on Supplier's invoice.

3. **Supply Chain Security:** To ensure the security of Goods, Supplier must be a member of the U.S. Customs-Trade Partnership Against Terrorism (C-TPAT), Canadian Partners in Protection (PIP) program, or an equivalent supply chain security program, as applicable. Or, upon request, Supplier must submit to audit and provide a signed agreement to strengthen supply chain security. In addition, Supplier must use international transportation providers certified under the Supply Chain Security Program.

[illegible]

6. Warranty. Supplier represents and warrants that: (i) it possesses the requisite skill, capacity to supply, and facilities necessary to fulfill its obligations under the Agreement, and that it possesses and is in compliance with all required licenses, intellectual property rights, permits and approvals necessary to fulfill its obligations under the Agreement; (ii) it certifies that it has no knowledge of any circumstances which might reasonably lead to the belief that it or its suppliers are unable to comply with the terms of the Agreement; (iii) it warrants that it will, in all respects, conform to all applicable Laws and professional requirements in force in the countries of manufacture, supply and/or receipt of the Goods and any countries of which it is a resident, or sell the Goods in compliance with such requirements, and are not articles that cannot, by Law, be distributed throughout multiple states, provinces, countries or jurisdictions; (iv) the Goods will be free of chemicals and substances prohibited, restricted or limited by any applicable Laws, and (v) the Goods will conform to all specifications with respect to the quality, quantity, condition, performance, safety, reliability, durability, and other characteristics of the Goods as set forth in the Specifications which may change from time to time by notice to Supplier; (vi) the Goods are safe and appropriate, and fit for Berry's intended use, and all reasonably foreseeable uses, and will include all necessary instructions or recommendations relating to the handling, assembly, use and storage of the Goods; (vii) the Goods will be merchantable, of good quality and workmanship, and free from defects, and the Goods will not be manufactured in whole or in part by any subcontractor unless approved in a signed writing in advance by Berry; and (viii) the Goods will not infringe the patent, trademark, copyright, trade dress or other intellectual property rights of any person. The parties agree that the longest permissible statute limitation, consistent with applicable Law, shall apply to and control any dispute or claim hereunder, notwithstanding any effort by Supplier to reduce such limitation period.

7. **Conformances:** Supplier warrants that it will provide all appropriate certifications that the Goods comply with the Specifications to Berry's satisfaction including, as applicable, FDA conditions of use requirements, guarantees that the Goods are not adulterated or misbranded, and material safety data sheets. Supplier certifies that neither it nor its principals (owners, senior officials) nor any subcontractor used in relation to the Goods supplied to Berry of any change in this status within three (3) business days of such occurrence.

8. **Global Trade Compliance and Export Controls Regulations:** Supplier accepts all responsibility for the information provided on any document certifying the Good's country of origin or qualification for trade preference upon import and agrees to provide supporting documents for such claims including appropriate letters, affidavits, production and financial records as deemed necessary. Anticipated and actual changes to the country of origin or claimed eligibility under a trade preference must be immediately communicated to Berry's Procurement and Global Trade Compliance departments. Any losses, claims, or liabilities resulting from import claims made with inaccurate or incomplete data related to origin and/or trade preference are the responsibility of Supplier and Supplier agrees to defend, indemnify, and hold Berry harmless for any claim, loss, investigation, or damage resulting therefrom. Berry shall have the right to conduct audits of Supplier's facilities, books, and records to confirm compliance with Berry requirements and policies. Deliverables under the P.O. may be subject to U.S. A.I.C. and other government export control regulations. Supplier represents and warrants that it will comply with all applicable export laws and regulations related to the use, export, and re-export of the Goods. Consistent with the requirements of Berry's Supplier Code of Conduct, referenced herein, Supplier will comply with applicable anti-boycott and export controls laws, supply chain security and trade regulations requirements. Supplier confirms that all personnel, contractors, and other third parties involved in the sale of the Goods are properly screened against lists maintained by relevant national authorities, including U.S. Denied Parties lists. Supplier shall maintain evidence of reviews and screening and make such evidence available upon request. Supplier will advise Berry of any export controls violations related to any purchase hereunder.

the extent that the Goods include or embody any of Berry's intellectual property, including inventions, patents, trademarks, service marks, trade dress, copyrighted material or any other material, information or data which, in the form and manner presented, are proprietary to Berry, all such information and intellectual property shall be deemed "Confidential Information" and, as applicable, trade secret information, and Supplier shall have only a limited, temporary, revocable, non-exclusive license (not including any have-made license) to use the Confidential Information only for the time period and to the extent necessary to complete the Agreement. Supplier must: (i) employ safeguards at least as stringent as its own to protect the Confidential Information; (ii) not permit the use or disclosure of any Confidential Information to any person other than those employees of Supplier who have a need to know to fulfill the P.O. and who are bound to at least the same obligations of confidentiality as set forth herein; (iii) not reproduce, copy, reverse engineer, reverse engineer or misuse or misappropriate any Confidential Information; and (iv) promptly report to Berry in writing any disclosure or attempted use of the Confidential Information in violation of this clause. When no longer required to fulfill the P.O., Supplier will return such Confidential Information or destroy it and provide acceptable proof thereof as Berry directs. Supplier acknowledges that any breach of the provisions of this Clause 9 would cause irreparable harm and therefore Berry, in addition to all other relief available pursuant to applicable Law or in equity or under the Agreement, shall be entitled to equitable relief, where permitted by Law, including injunctions and any other or additional relief, including damages, even if the Confidential Information under consideration does not constitute a trade secret.

10. **Privacy and Security.** Supplier will fully comply with all applicable privacy and security Laws. To the extent applicable, Supplier warrants, represents and undertakes the following: (i) processes Personal Data on Berry's behalf; that, (ii) it will notify Berry immediately, and in any event within 24 hours of becoming aware, of any actual or suspected Personal Data Breach; (iii) it will act only upon Berry's instructions with respect to Personal Data; (iii) it has in place appropriate measures against the unauthorized, unlawful or accidental processing, access, loss or destruction of such Personal Data; and (iv) it will not, without Berry's permission, transmit Personal Data outside of the country where the Supplier is contracting is located. For purposes of this Clause 10, "personal data" and "security laws" mean and include all applicable Laws protecting the personal data and privacy of natural persons, including in particular, the European General Data Protection Regulation 2016/679 ("GDPR") and its implementing national data protection laws as well as any subsequent applicable legislation that may amend or replace, react or consolidate any of them; and the terms "personal Data Breach" have the same meaning as under the GDPR.

[illegible]

12. **Prices:** In all cases: (i) Berry shall not be billed at prices higher than those stated in the P.O.; (ii) any changes in prices must be notified in writing by Berry; and (iii) if no price is shown, Berry's authorized agent must be notified of the price and must accept such price in writing prior to Supplier fulfilling the P.O. Unless otherwise specified in the P.O., and (iv) the price stated shall include all charges for packing, handling, storage and transportation to the agreed upon destination. All taxes applicable to Berry and paid by Supplier must be included in and shown separately on the invoice to Berry. Supplier agrees that any price reduction made with respect to the Goods subsequent to the date of the P.O. but prior to payment will be applicable to the P.O. Supplier represents and warrants that the prices for the Goods will always be the lowest prices paid by or available to other purchasers of Goods in similar or lesser quantities.

13. Payment Terms: Unless otherwise stated on the P.O. or shorter terms are required by Law, (i) payment terms shall be net 90 days after Berry's receipt of Supplier's invoice or the Goods, whichever occurs last; and (ii) Berry shall have the right to deduct, set-off or otherwise withhold payments reasonably determined by Berry to be due and owing to Supplier. In the event applicable Law requires or permits a party to identify an interest rate permitted by Law, which may include zero percent (0%).

14. Currency: Berry shall pay to Supplier all sums owed under Clause 12 in the currency set forth in the P.O. or, if none is listed, in U.S. dollars (\$); provided, if Supplier is located outside the United States, deals in a currency other than the U.S. dollar and no currency is identified within the P.O., Berry shall have the benefit of the more favorable rate of exchange between the U.S. dollar and the local currency based on the date of the P.O. or date of shipment of the Goods.

15. **Events of Default:** Unless expressly provided for in the Agreement, Supplier shall be deemed to be in default upon the occurrence of any of the following events, or of any other comparable event according to the Law of Supplier's domicile: (i) suspension, cessation or threat of suspension or cessation of carrying on all or a substantial part of Supplier's business; (ii) bankruptcy, liquidation or compulsory order for the liquidation of Supplier; (iii) appointment of a receiver or trustee, administrative receiver, trustee or administrator of Supplier; or (iv) execution by Supplier of an assignment for benefit of creditors.

16. **Berry's Remedies Upon Supplier's Default:** Without limiting Berry's potential statutory rights and claims associated with this Agreement, upon default by Supplier, Berry will be entitled to recover its costs of cover, lost sales and profits, other incidental and consequential damages, and will be entitled to all other rights and remedies available under the Agreement, at Law, and in equity and may (but will not be obliged to) do any or all of the following: (i) reject or revoke acceptance of the Goods and return them to Supplier at Supplier's own risk and expense; (ii) require Supplier to repair or replace rejected Goods, or to provide a full refund of the price of the rejected Goods; (iii) obtain replacement Goods from an alternative supplier and recover from Supplier any additional costs incurred by Berry in obtaining replacement Goods; or (iv) immediately terminate the Agreement without obligation or liability whatsoever with respect to non-conforming Goods and Goods not yet delivered to Berry at the time of such termination. Berry's decision to pursue any remedy shall not be deemed to be an election not to pursue any other remedy at the same time. In all cases, Berry shall be entitled to recovery of its reasonable attorney's fees and expenses.

17. General. The parties are independent contractors. The Agreement is not assignable by Supplier but may be assigned by Berry. If any provision of this Agreement is held invalid by any court in a final decision from which no appeal can be taken, such provision shall be deemed modified to eliminate the invalid element only. The invalidity of any provision of this Agreement shall not affect the validity of the remaining provisions hereof. The invalidity of any provision of this Agreement shall not affect the force and effect of the remaining provisions hereof. If these Terms and Conditions are also communicated to Supplier in a language other than the English language, Supplier agrees that any inconsistencies between the interpretation of these Terms and Conditions and the English version thereof, available online at <<http://www.berryglobal.com/terms-conditions>>, shall be resolved by giving precedence to the English language version.

18. **Governing Law and Venue Selection:** This Agreement shall be governed in all respects by the laws of the State of Indiana, United States of America, without application of any conflict of laws provisions and the Convention on Contracts for the International Sale of Goods, which shall have no force or effect in this Agreement. Having first attempted in good faith to informally resolve any dispute that may arise between them, either party to this Agreement may thereafter pursue such dispute solely and exclusively in the federal or state courts located in Indiana, and Supplier, on behalf of itself and a United States Affiliate, if applicable, consents to the personal jurisdiction of those courts and waives all defenses based on inconvenient forum. For purposes of this Clause 18, the term "United States Affiliate" shall include any entity organized under the laws of the United States which owns a majority interest of or is owned by Supplier at the time of contracting and shall apply to this Agreement only insofar as Supplier is not otherwise organized under the laws of the United States but is otherwise affiliated with a United States Affiliate, in which case, Supplier hereby designates its United States Affiliate as its service of process agent. Notwithstanding the foregoing, Berry has the right at its discretion to take legal action against Supplier at a court with jurisdiction over the registered office or branch office of Supplier or at the court with jurisdiction over the place of performance.